

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA

Tentative Ruling

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**2023CUBC017482: JUAN CERVANTES LOPEZ, et al. vs GENERAL MOTORS LLC**  
**07/09/2026 in Department 44**  
**Motion for Summary Judgment**

**Department Rules.** Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

**Remote Appearances.** The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

**ZOOM Registration Link:**

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

**Tentative Rulings.** Oral argument should address the tentative decision. To submit on the tentative decision, email [courtroom44@ventura.courts.ca.gov](mailto:courtroom44@ventura.courts.ca.gov) before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**Motion:** Defendant General Motors, LLC (“Defendant”) Motion for Summary Judgment (“MSJ”)

**I. Tentative Ruling:**

Defendant’s Motion for Summary Judgment is DENIED.

**II. Preliminary Matters**

**A. Objections**

The Court OVERRULES all of Plaintiffs Juan Cervantes-Lopez and Leticia Cervantes (“Plaintiffs”) objections to the Declaration of Brian Jensen.

**B. Material Facts**

The Court finds that the following with respect to the Defendant's Undisputed Material Facts (“UMF”) and Plaintiff's Additional Material Disputed Facts (“AMF”)

**1. Defendant’s UMF**

The following facts are undisputed: 1, 2, 4, 9

The following facts are disputed but established: 3, 5-8

## **2. Plaintiff's AMF**

The following facts are undisputed: 1-9.

## **D. Rules of Court**

The parties' papers did not comply with California Rules of Court, 2.256(b) and 3.1110(f), which require that electronically filed documents are book marked and each exhibit marked and labeled within a bookmark. Counsel are admonished to ensure future filings comport with the rules of court.

## **III. Factual Summary**

On March 13, 2023, Plaintiffs purchased a used Chevrolet Camaro with 2,632 miles from a dealer not affiliated with Defendant. The only warranty that came with the vehicle as is relevant to these proceedings is the remainder of the manufacturer's new vehicle limited warranty, which provided for a warranty covering the vehicle with bumper to bumper coverage for 3 years/36,000 miles, and the powertrain for 60 months or 60,000 miles. Plaintiffs brought the vehicle in for warranty repairs concerning the engine several times, on January 16, 2023, March 6, 2023, and June 20, 2023. Each time the repairs were covered under warranty and Defendant's authorized repair facility told Plaintiff the vehicle was fixed, operating as intended, and safe to drive. Despite these representations, the vehicle's engine continues to have issues among other problems.

Plaintiffs filed this lawsuit on December 6, 2023, and amended their claims on January 25, 2024 with the filing of the operative complaint, the First Amended Complaint ("FAC"). The FAC asserts five causes of action: 1) Breach of Express Warranty under the Song-Beverly Act; 2) Fraudulent Concealment; 3) Breach of Express Warranty under the California Commercial Code at section 2719(2); 4) violation of the Magnuson-Moss Warranty Act; and 5) violations of the Consumer Remedies Legal Act at Civil Code section 1750 et seq. ("CLRA").

Defendant moves for summary judgment, and does not move, in the alternative, for summary adjudication.

## **IV. Discussion**

### **A. Legal Standard: Summary Judgment**

The purpose of summary judgment is to enable courts to determine whether trial is actually necessary by cutting through the parties' pleadings. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Strict compliance with Code of Civil Procedure section 437c safeguards the constitutional right to jury trial. (*Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395.) A defendant moving for summary judgment bears the initial burden to show that one or more elements of a cause of action cannot be established or that a complete defense exists. (Code Civ. Proc., § 437c, subd. (p)(2); *Dollinger DeAnza Associates v. Chicago Title Ins. Co.* (2011) 199 Cal.App.4th 1132, 1144.) The defendant need not produce affirmative evidence negating an element but may point to the absence of evidence supporting the plaintiff's case. (*Padilla v. Rodas* (2008) 160 Cal.App.4th 742, 752.) If the defendant meets this burden, it shifts to the

plaintiff to set forth specific admissible facts showing a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); *LaChapelle v. Toyota Motor Credit Corp.* (2002) 102 Cal.App.4th 977, 981.) A party's admission that a material fact is undisputed is conclusive for purposes of the motion. (*City of San Diego v. DeLeeuw* (1993) 12 Cal.App.4th 10, 14; *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 747.)

Summary judgment is proper only where there are no triable issues of act as to all causes of action. (Code Civ. Proc. 437c(c).) Unless the notice of motion duly gives notice that summary adjudication of issues, in the alternative to summary judgment, is also sought, the Court cannot consider adjudication of issues. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1545-46.)

#### **A. Breach of Express Warranty, Song-Beverly Act**

Defendant moves for summary judgment as to Plaintiff's first cause of action that alleges breach of express warranty under the Song-Beverly Act. Defendant asserts that this claim is barred under *Rodriguez v. FCA* (2024) 17 Cal.5th 189, which held that claims under the Song Beverly Act do not cover the sale of used vehicles that that were covered with the remainder of the original factory warranty. (*Id.*) Here, the undisputed material facts establish that Plaintiffs purchased a used vehicle that was covered by the remaining factory warranty. There is no evidence that any other warranty issued by GM. Accordingly, there is no triable material fact as to this claim, however, because there are triable issues of fact as to Plaintiffs' other claims, Defendant is not entitled to summary judgment.

#### **B. Fraudulent Concealment & Violation of the CLRA**

Defendant asserts that Plaintiffs cannot establish a triable issue of material fact that Defendant had a duty to disclose the alleged engine defects to Plaintiffs because Plaintiffs did not purchase the vehicle directly from GM. However, under *Dhital v. Nissan North America* (2022) 84 Cal.App.5th 828, the Court of Appeal held that fraud allegations against a vehicle manufacturer were sufficient to withstand demurrer (i.e., that the manufacturer knew of the defects and hazards they posed, had exclusive knowledge of the defects but concealed them, and plaintiffs would not have purchased the vehicle had they known, and suffered damage. were sufficient to state a fraud claim). (*Id.* at p. 844.) Plaintiffs here have made such allegations in support of their fraud and CLRA claims. There are triable issues of fact concerning these claims, and Defendant is not entitled to summary judgment.

#### **C. Commercial Code Express Warranty Claim**

Under the Commercial Code, 2313, a cause of action for breach of express warranty stands where the defendant gives a written warranty, the good does not conform, the plaintiff took reasonable steps to notify the defendant within a reasonable time that the good was not as represented, and that the good's failure was a substantial factor in causing plaintiff's harm. (CAC No. 1230.) See also *Orichian v. BMW of North America, LLC* (2014) 226 Cal.App.4th 1322, 1333-1334.)

The general rule is that privity of contract is required between the manufacturer of the good and the consumer, however, in (*Burr v. Sherwin-Williams Co.* (1954) 42 Cal.2d 682, 695, the California Supreme Court created an "exception to the general rule . . . where the purchaser of a product relied on representations made by the manufacturer in labels or advertising material, and

recovery from the manufacturer was allowed on the theory of express warranty without a showing of privity.” *Burr v. Sherwin Williams Co.*, 42 Cal.2d at p. 696; see also *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 14 [applying *Burr* privity exception in the context of an automobile manufacturer's express warranty] superseded on other grounds as stated in *Thompson v. BMW of North America, LLC* (C.D. Cal., Jan. 10, 2019, No. SACV 17-01912-CJC-KS) 2019 WL 988694, at \*5.)

Here, Plaintiffs purchased a used vehicle, which Defendant concedes was covered by the remainder of a factory warranty. Accordingly, there is a triable issue of fact as to this claim.

Defendant is not entitled to judgment.

#### **D. Magnuson Moss Claim**

“The Magnuson–Moss Warranty—Federal Trade Commission Improvement Act (Magnuson–Moss), 15 U.S.C. sections 2301 et seq., authorizes a civil suit by a consumer to enforce the terms of an implied or express warranty. Magnuson–Moss calls for the application of state written and implied warranty law, not the creation of additional federal law, except in specific instances in which it expressly prescribes a regulating rule.” (*Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 832-833 [internal quotation marks omitted]; *Orichian v. BMW of North America, LLC* (2014) 226 Cal.App.4th 1322, 1330 [citing *Daugherty*].) Thus, a plaintiff asserting a Magnuson-Moss claim must identify a viable state-law warranty obligation that was breached.

Here, as explained above, Plaintiff has done so.

Defendant is not entitled to summary judgment.

Plaintiff shall give notice.